

CivicOS Institute

Bylaws

Version: 1.0

Status: DRAFT — Pending Board Adoption

Adoption Date: Pending Board Adoption

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Executive Director: Nicholas A. Cerbone

ARTICLE I — OFFICES

Section 1.01 Principal Office. 4884 Beresford Circle, West Palm Beach, Florida 33417.

ARTICLE II — PURPOSE

Section 1.03 Purpose Clauses. The organization is operated exclusively for charitable and educational purposes.

ARTICLE III — BOARD OF DIRECTORS

Section 3.01 Number and Qualification of Directors. 3 to 9 directors.

Section 3.02 Powers and Duties. Directors exercise fiduciary oversight and governance authority.

Section 3.03 Terms. Standard director term is 3 years with a maximum of 2 consecutive terms.

Section 3.04: Provisional Directors

(a) Authorization and Rights

The Board may seat provisional directors for a term not to exceed twelve (12) months. Provisional directors hold full voting rights and count toward quorum. Provisional terms do not count toward the consecutive term limits in Section 3.03. A provisional director may be converted to a standard term by majority Board vote, with the provisional period counting toward the first standard term at Board discretion.

(b) Founding Period Exception

Prior to the Organization's receipt of IRS 501(c)(3) determination or the conclusion of the first full annual Board meeting, whichever occurs later, the Board may consist entirely of provisional directors. Upon conclusion of the founding period, no more than one-third of the maximum board size may serve as provisional directors at any time. Upon seating of the third (3rd) permanent director, the Board Chair shall place board composition on the agenda of the next scheduled board meeting as a required action item. The Board shall at that meeting, by majority vote, determine whether to: (a) invite provisional directors to convert to standard terms; (b) allow provisional terms to expire naturally; (c) request voluntary resignation of provisional appointments; or (d) any combination thereof. The Board's determination and rationale shall be recorded in minutes. No action is required if fewer than three (3) permanent directors have been seated.

(c) Due Diligence Obligation

Where the Board consists entirely or in majority of provisional directors, the Executive Director and Board Chair shall, within thirty (30) days of the first board meeting or by the next scheduled board meeting whichever occurs first, demonstrate active good-faith efforts to recruit and seat permanent directors. Evidence of due diligence shall include, at minimum: - written outreach to no fewer than three (3) prospective permanent directors; - documented consideration of candidate qualifications against organizational needs; - a written status report presented to the full Board and recorded in meeting minutes. This due diligence obligation repeats at each subsequent board meeting until at least one permanent director is seated or the founding period concludes, whichever occurs first.

(d) Sunset and Escalation

If no permanent director has been seated within twelve (12) months of the date of incorporation, the

matter shall be automatically escalated to legal counsel for governance review. Legal counsel shall present findings and recommendations to the full Board within thirty (30) days of escalation. The Board shall record its response to those recommendations in meeting minutes. This escalation does not suspend board operations or invalidate actions taken during the provisional period.

Section 3.05 Resignation and Removal

Section 3.06 Vacancies

Section 3.07 Regular Meetings. At least 4 annually.

Section 3.08 Special Meetings

Section 3.09 Notice

Section 3.10 Quorum and Voting. Quorum is majority.

Section 3.11 Action Without Meeting

Section 3.12 Participation by Communications Equipment

Section 3.13 Compensation and Reimbursement

Section 3.14 Committees and Delegations

ANNEX — INTERNAL REVISION REFERENCE (non-operative text)

01 Annex 1: archival trace token 1772310096637-1-gkujasfi7ss-8w9pf3ztl7a

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